**Date: 20th November, 2025**

**BSE Limited**
**Phiroze Jeejeebhoy Towers,**
**Dalal Street, Fort,**
**Mumbai — 400 001**
**Scrip Code: 531548**

**National Stock Exchange of India Ltd. (NSE)**
**Exchange Plaza,**
**Bandra Kurla Complex, Bandra (E),**
**Mumbai — 400 051**
**Symbol: SOMANYCERA**

Dear Sir/Madam,

**Subject: Application under Regulation 37 of the Securities and Exchange Board of India (Listing Obligations and Disclosure Requirements) Regulations, 2015 ("Listing Regulations") for the Scheme of Amalgamation of Somany Bathware Limited, Somany Excel Vitrified Private Limited and SR Continental Limited ("hereinafter collectively referred to as the "Transferor Companies") with and into Somany Ceramics Limited ("Company"/"Transferee Company") and their respective shareholders and creditors ("Scheme").**

This is to inform you that the Board of directors of the Company have approved the Scheme of Amalgamation of Somany Bathware Limited ("**SBL**"/ "**Transferor Company 1**"), Somany Excel Vitrified Private Limited ("**SEVPL**"/ "**Transferor Company 2**") and SR Continental Limited ("**SRCL**"/ "**Transferor Company 3**") ("hereinafter collectively referred to as the "**Transferor Companies**") with and into Somany Ceramics Limited and their respective shareholders and creditors at their meeting held on Friday, November 07, 2025, subject to receipt of statutory and regulatory approvals, including approvals from jurisdictional National Company Law Tribunal.

Further, in accordance with the SEBI Master Circular no. SEBI/HO/CFD/POD-2/P/CIR/2023/93 dated June 20, 2023 ("**SEBI Master Circular**"), the requirement of obtaining 'No-Objection Letter' or 'Observation Letter' to the Scheme from the Stock Exchanges is not applicable to this Draft Scheme as it solely provides for merger of wholly owned subsidiaries with its holding company.

With reference to the captioned matter and the checklist of documents required to be submitted under Regulation 37(6) of the Listing Regulations, please find the attached documents for your records and kind perusal:

| Sl. No. | Documents to be submitted along with application under Regulation 37 of the Listing Regulations | Annexure |
|---|---|---|
| 1. | Certified true copy of resolutions passed by the Board of Directors of Somany Bathware Limited, Somany Excel Vitrified Private Limited, SR Continental Limited approving the draft scheme of amalgamation of Wholly Owned Subsidiary with its Holding Company, i.e., Somany Ceramics Limited | Annexure I |
| 2. | Certified copy of the Draft Scheme of Amalgamation proposed to be filed with Hon`ble NCLT | Annexure II |
| 3. | Processing fee (non-refundable) to BSE | Annexure III |

The aforesaid information may also be accessed on the website of the Company at www.somanyceramics.com.

This is for your information & records.

Thanking you,
Yours Faithfully,
**For Somany Ceramics Limited**

ANUJ KALIA
Digitally signed by ANUJ KALIA
Date: 2025.11.20 19:49:51 +05'30'

**Anuj Kalia**
**Company Secretary & Compliance Officer**
**Membership No.: A31850**

**Encl: as above**

SCHEME OF AMALGAMATION

BETWEEN

**SOMANY BATHWARE LIMITED**
(TRANSFEROR COMPANY 1)

AND

**SOMANY EXCEL VITRIFIED PRIVATE LIMITED**
(TRANSFEROR COMPANY 2)

AND

**SR CONTINENTAL LIMITED**
(TRANSFEROR COMPANY 3)

WITH

**SOMANY CERAMICS LIMITED**

(TRANSFEREE COMPANY)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

UNDER SECTIONS 230-232 OF THE COMPANIES ACT, 2013














## A. PREAMBLE

This Scheme of Amalgamation is presented under Sections 230-232 and other applicable provisions of the Act (*as defined in Part A below*) and the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 including any statutory modification(s), amendment(s), or re-enactment(s) thereof for the time being in force and in compliance with provisions of Section 2(1B), Section 72A and other relevant provisions of the IT Act, for amalgamation of Somany Bathware Limited, Somany Excel Vitrified Private Limited and SR Continental Limited with Somany Ceramics Limited as a going concern.

Somany Bathware Limited, Somany Excel Vitrified Private Limited and SR Continental Limited are wholly owned subsidiaries of Somany Ceramics Limited. Accordingly, in consideration of the merger, Somany Ceramics Limited will not issue any shares under the Scheme of Amalgamation. The existing shareholding of Somany Bathware Limited, Somany Excel Vitrified Private Limited and SR Continental Limited will stand cancelled pursuant to the Scheme of Amalgamation.

In addition, this Scheme of Amalgamation also provides for various other matters consequential or otherwise integrally connected herewith.

## B. BACKGROUND OF COMPANIES INVOLVED IN THE SCHEME

(i) **Somany Bathware Limited** (hereinafter referred to as "**Transferor Company 1**") (CIN: U51909WB2006PLC273565) is a company incorporated on December 26, 2006, with the Registrar of Companies, NCT Delhi & Haryana as "Somany Retail Limited" and received Certificate for Commencement of business dated February 02, 2007. The name of the Transferor Company 1 was changed from "Somany Retail Limited" to "Somany Global Limited" on September 02, 2009 and from "Somany Global Limited" to "Somany Bathware Limited" (as its current name) on October 11, 2018. At present the registered office of Transferor Company 1 is located at 2, Red Cross Place, Kolkata – 700001 within the jurisdiction of the Hon'ble NCLT, Kolkata. As per the memorandum of association of Transferor Company 1, the

Transferor Company 1 is engaged in the business of trading of ceramics tiles, sanitary ware and allied products. The main object of the Transferor Company 1 is as follows:

***Main Object:***

i. *To carry on the business of retailer in India or elsewhere by opening outlets, shops, display centres to sell and display all kinds of tiles, ceramic ware, sanitary ware, bathroom accessories, glass, glassware, tableware, decorative ware and all types of building materials etc.*

ii. *To carry on the business of importers and exporters of, traders and dealers in or otherwise engage generally in all types of tiles, sanitary goods and sanitary accessories, products of all classes, viz., fibre glass, glass wood, fireclay, refractories, insulations, cements of all types including H. A. cement, glass , china wares, porcelain wares, earthen wares, stone wares, terracotta, plastics moulding and extrusions and crockery wares, table wares, glass wares, figures and statues, artificial teeth, electrical insulators, sanitary wares, glazed or unglazed tiles, laboratory, hospital and industrial requisites, sparking plugs, drainage and water supply pipes, refractory and insulation cement, bricks and other shapes and linings and all types and kinds of any class of plastic, heavy clay and ceramic products.*

iii. *To produce, refine, cure, process, prepare, import, export, purchase, sell and generally deal in all kinds of tiles, ceramic ware, glass and glass ware, insulators, asphalt, asbestos and asbestos products, cement and cement products, gypsum, building materials, plastic and plastic wares, polymetric, vinyl, vinyl asbestros and solid vinyl ware, adhesives, vinyl cover base, fire bricks, fire clay, fire cement, terracotta, blocks, lime, limestone, fibreglass and fibreglassware, refractories, hospital ware, including in particular but not limiting the generality of the forgoing wall tiles, floor tiles, roofing tiles, porcelain tiles, plastic and other synthetic tiles, earthenware tiles, vitreous sintered mosaic tiles, clinker tiles, refractory tiles, paying tiles, grey tiles, sanitary wares, crockery, pottery, tableware, hotel ware, decorative ware, garden ware, earthenware, pressed ware, porcelain bathroom accessories, and*

SOMANY BATHWARE LIMITED

SOMANY EXCEL VITRIFIED PVT LTD



SRS CONTINENTAL LIMITED

SOMANY CERAMICS LIMITED

*to provide, equip and maintain plants, laboratories, test houses, factories, and all other appliances and conveniences required for the manufacture, examination, storage, sale and purchase of products.*

iv. *To enter into franchise operations, tie-ups, collaborations, technology transfers within India and outside India for the items mentioned in clause 1 to 3 above.*

v. *To act as consultant, retainers, contractors, decorators, planners, approvers, commission agents, mediators, brokers, factors, consultants, advisers or alike for various organisation dealing in items mentioned in 1 and 2 above.*

(ii) **Somany Excel Vitrified Private Limited** (hereinafter referred to as "**Transferor Company 2**") (CIN: U26955WB2015PTC274839) was incorporated on October 30, 2015, with the Registrar of Companies, Rajasthan. At present the registered office of Transferor Company 2 is located at 2, Red Cross Place, Kolkata -700001 within the jurisdiction of the Hon'ble NCLT, Kolkata. As per the memorandum of association of Transferor Company 2, the Transferor Company 2 is engaged in the business of trading of sanitary ware and parts thereof. The main object of the Transferor Company 2 is as follows:

***Main Object:***

*To carry on in India or elsewhere the business to manufacture, produce, treat, process, design, develop, build, convert, cure, crush, distribute, display, exchange, barter, explore, extract, excavate, finish, formulate, grind, handle, fabricate, import, export, purchase, sell, jobwork, mix, modify, market, operate, prepare, and to act as brokers, agents, stockiests, consignors , franchisers, collaborators, distributors, dealers, suppliers, service provider, promoters, concessionaires, consultants, C and F agent, wholesalers, retailers, sales organizers, and to carry on trading and other operations of all shapes, sizes, varieties, specifications, descriptions, including applications and uses, of tiles, laying of tiles, including ceramic tiles, glazed tiles, mosaics tiles, floor tiles, marble tiles, cement tiles, wall tiles, granite tiles, porcelain tiles, roofing tiles, china tiles, Ceramic Products and by-products thereof, any kinds of metal products, sanitary wares, ceramics wares, earthwares, crockeries,*

SOMANY BATHWARE LIMITED

SOMANY EXCEL VITRIFIED PVT LTD



SR CONTINENTAL LIMITED

SOMANY CERAMICS LIMITED

*pressedwares, decorativewares, gardenwares, kitchenwares, potteries insulators, terracotta, porcelain ware, bathroom, accessories, pipes, bricks, building materials, asbestos sheets, poles, blocks, plumbing fixture including fitting, parts, accessories, consumable components and buy-products thereof and plumbing services.*

(iii) **SR Continental Limited** (hereinafter referred to as "**Transferor Company 3**") (CIN: U55101WB1979PLC282621) was incorporated on June 25, 1979, with the Registrar of Companies, West Bengal as "Special Refractories Limited" and received Certificate for Commencement of business dated July 27, 1979. The name of the Transferor Company 3 was changed from "Special Refractories Limited" to "SR Continental Limited" on February 03, 2003. At present the registered office of the Transferor Company 3 is located at 2, Red Cross Place, Kolkata -700001 within the jurisdiction of the Hon'ble NCLT, Kolkata. As per the memorandum of association of the Transferor Company 3, the Transferor Company 3 is engaged in the business of trading of ceramics tiles, sanitary ware and allied products. The main object of the Transferor Company 3 is as follows:

***Main Object:***

i. *To manufacture, compose, prepare, import, export, buy, sell and generally deal in refractories, fire-bricks, fire-clay insulation bricks, silica bricks and bricks of all kinds, mortars, lime cement, fire cement and refractories of all kinds.*

ii. *To make, compose, prepare, buy, sell and dispose of sewer pipes, drain pipes, stone pipes, hume pipes, concrete pipes and pipes of all kinds and building materials of all kinds.*

iii. *To buy, sell, get, work, shape, hew, carve, polish, crush and prepare for market or use stone of all kinds and to manufacture, pave and deal in artificial stone weather for building, paving or other purposes.*

iv. *To carry on business as quarry masters, stone merchants, road and pavement makers and repairers, builders and contractors for the execution of works and buildings of all kinds in the construction of which stone is required.*

v. *To manufacture, prepare, import, export, buy, sell and generally deal in all kinds of glass, glass-wares, glass-goods, mirrors, looking glass, scientific glasswares, bangles, false pearls, bottles, phials and all kinds of articles*

SOMANY BATHWARE LIMITED

SOMANY EXCEL VITRIFIED PVT LTD



SR CONTINENTAL LIMITED

SOMANY CERAMICS LIMITED

*prepared of glass and to carry out the business of glass leveller, patent solverer, glass embosser, ecclesiastical lead workers, glass tablet, show card and show case manufactures.*

vi. *To produce, manufacture, refine, treat, cure, process, prepare, import, export, purchase, sell and generally deal in all kinds if ceramics, ceramic wares, insulators, asphalt, asbestos, terakota, blocks, lime stone, fibreglass, fibreglassware, mortals, jigs, tools, dies, fixtures and bathroom accessories, and generally deal in or process any other products which may come out as by products or which may be essential for filing or fixing the above products or fittings for any of the products or by products or may in any way be similar to the products.*

vii. *To produce, manufacture, refine, treat, cure, process, prepare, import, export, purchase, sell and generally deal in all kinds of tiles including in particular but not limiting the generality of the foregoing wall tiles, floor tiles, roofing tiles, porcelain tiles, plastic and other synthetic tiles, earthen-ware tiles, paving tiles, gres tils and to provide, equip and maintain plants, laboratories, test houses, factories and all other appliances and conveniences required for the manufacture, examination, storage, sell and purchase of products and to manufacture, refine treat cure or subject to any process, prepare, import, export, purchase, sell, treat and generally deal in any other products which may come out as by-products or which may be essential for the fitting or fixing the above products or by-products or may in any way be similar to the products.-*

viii. *To render to any person or firm or body corporate whether in India or elsewhere technical information, know-how, consultancy services, processes, engineering, manufacturing and operating data, plans, lay-outs, and blue-prints useful for design, erection and operation of plant related to the production, manufacturing, designing, fabricating, assembling of refractories, glass and glasswares of all kinds, ceramic materials and tiles of all kinds.*

ix. *To manufacture, prepare, buy, sell, import, export and generally deal in Ceramic Colors, Pigments, stains, Enamels, Frits and Glazes of all kinds and any other raw materials required for use of ceramic products including in tiles industries and to develop bodies for tiles industries.*

SOMANY BATHWARE LIMITED

SOMANY EXCEL VITRIFIED PVT LTD



SR CONTINENTAL LIMITED

SOMANY CERAMICS LIMITED

(iv) **Somany Ceramics Limited** (hereinafter referred to as "**Transferee Company**") (CIN: L40200WB1968PLC224116) was incorporated on January 20, 1968, with Registrar of Companies, West Bengal as "Somany-Pilkington's Limited" and received Certificate for Commencement of business dated February 7, 1968. The name of the Transferee Company was changed from "Somany-Pilkington's Limited" to "SPL Limited" on October 18, 1995, and from "SPL Limited" to "Somany Ceramics Limited" (as its current name) on January 30, 2007. At present, the registered office of the Transferee Company is located at 2, Red Cross Place, Kolkata - 700001. Transferee Company is an internationally acclaimed organization that specializes in ceramic tiles, sanitary ware, bath fittings, tile laying solutions and allied products. Transferee Company has an access to tiles manufacturing capacity of ~75 million square meters(msm) annually through two owned units (Kadi, Gujarat and Kassar, Haryana) and five associate/subsidiary companies and also other outsource vendors. It has also access to the capacity of 0.48 million of sanitaryware and 1.30 million bath fittings each year through two subsidiary companies. Transferee Company is a complete décor solutions provider and its extensive range of products include- Ceramic Wall and Floor Tiles, Polished Vitrified Tiles, Glazed Vitrified Tiles, Sanitaryware and Bath Fittings as well as Tile Laying Solutions. The equity shares of the Transferee Company are listed on BSE Limited ('**BSE**') and National Stock Exchange of India Ltd. ('**NSE**'). The main object of the Transferee Company is as follows:

***Main Object:***

i. *To produce, manufacture, refine, treat, cure, process prepare, Import, export, purchase, sell and generally deal in all kinds of tiles, ceramic ware, glass and glassware, insulators, asphalt, asbestos and asbestos products, cement and cement products, gypsum, building materials, plastic and plastic ware, polymerite, vinyl, vinyl-asbestos, and solid vinyl ware, adhesives, vinyl cove base, fire bricks, fire clay, fire cement, terracotta, blocks, lime, limestone, fibre glass and fibre glass ware, refractories, hospital ware, including in particular but not limiting the generality of the foregoing wall tiles, floor tiles, roofing tiles, porcelain tiles, plastic and other synthetic tiles, earthenware tiles,*

*vitreous sintered mosaic tiles, clinker tiles, refractory tiles, paving tiles, gres tiles, sanitaryware, crockery, pottery, tableware, hotelware, decorative ware, garden ware, earthenware, stoneware, pressedware, porcelain ware, bathroom accessories and to provide, equip and maintain plants, laboratories, test houses, factories and all other appliances and conveniences required for the manufacture, examination, storage, sale and purchase of products and to manufacture, refine, treat, cure or subject to any process, prepare, import, export, purchase, sell, treat and generally deal in any other products which may come out as by-products or which may be essential for fitting or fixing the above products or fittings for any of the above products or by-products or may in any way be similar to the products.*

ii. *To produce, manufacture, refine, treat, cure, process, prepare, import, export, purchase, sell, prospect for, take on lease, examine, explore, get, win, work, quarry, smelt, calcine, raise, manufacture, fabricate, design, assemble, refine, treat, crush, grind, dress, amalgamate, manipulate and prepare for market and generally deal in all kinds of clays minerals, ores, sands, coals, metals, stones, artificial stones, colours, ceramic colours, fritts, glazes, pigments, chemicals, opacifiers, oxides, kieselguhr and polishing wax and all products, by products and compounds thereof, and to provide equip and maintain plants, laboratories, test houses, factories and all other appliances and conveniences required for the manufacture, examination, storage, sale and purchase of the above products and to manufacture, refine, treat, cure or subject to any process, prepare, Import, export, purchase, sell and generally deal in any other products and by-products.*

iii. *To produce, manufacture, design, fabricate, assemble, prepare, import, export, purchase, sell and generally to deal in all kinds of kilns and components, ancillaries, auxilliaries, accessories and parts thereof, ceramic machinery and other machinery and components and parts thereof for the manufacturing, processing etc. of the aforesaid objects and including their component parts, ancillaries, auxlillaries, accessories and parts thereof.*

iv. *To carry on the business of paviours, builders and contractors, decorators, hardware and other building materials and requisites, brickmakers, job masters and to enter in to contracts for laying, polishing and completing all sorts of floorings, walls and other jobs.*

SOMANY BATHWARE LIMITED

SOMANY EXCEL VITRIFIED PVT LTD

SR CONTINENTAL LIMITED

SOMANY CERAMICS LIMITED

v. **To manufacture, print, export, import, buy and sell, transfers and stickers of all kinds printed on decalcomenia paper or other base materials and to act as printers, decorators and coaters of goods, sheets, papers and materials of all kinds and to prepare, manufacture, print, paint, use, import, export, design and device all kinds of articles of artistic objects for use and ornamentation of any articles and to manufacture or deal in colours, papers, coated papers or other material, films, fabrics, foils, screens, pens, brushes, adhesives, lacquars, oils, cleaners, thinners, developers, fixers, fillers, emulsions, decoraters, mediums, powers, concentrates and all other types of materials needed for printing, decorating, polishing, designing and artistic vocations.*

vi. **To design, develop, fabricate and manufacture machinery, plants and equipment including kilns and furnaces for manufacture of transfers and stickers and for application thereof either by itself or through an outside designer or manufacturer or fabricator and to use, buy, sell, hire, acquire or land such machinery, plant and equipment with technology or process and application thereof.*

vii. **To carry on the business of printers, decorators and coaters of tiles, sanitaryware, enamelware, potteries, bottles, tumblers, jars, dinnerware, tableware, holloware and other articles of glass, ceramics, clay, stone, metal, plastic, rubber, leather or any other material and for this purpose to buy, sell, import, export, hire, borrow or otherwise acquire any goods, technical know-how and processes equipment and services.*

**{Amended pursuant to Scheme of Amalgamation approved by National Company Law Tribunal, Kolkata Bench vide Order dated 20th December, 2021, made over to the Company on 30th December, 2021.}*

(v) The Transferor Company 1, Transferor Company 2 and Transferor Company 3 (collectively hereinafter referred to as "**Transferor Companies**") are wholly owned subsidiaries of the Transferee Company, with nominal shares being held by individuals holding such shares as nominee of the Transferee Company in compliance with section 89 of the Act.

## C. RATIONALE OF THE SCHEME

The Transferor Companies and Transferee Company are desirous of consolidating their businesses/operations into a single company by amalgamation of the Transferor Companies with the Transferee Company under this Scheme of Amalgamation.

The circumstances, which justify and/or necessitate the proposed Scheme of Amalgamation of the Transferor Companies with the Transferee Company; and benefits of the proposed amalgamation as perceived by the Board of Directors of these Companies, to the Shareholders and other stakeholders are, inter alia, as follows:

(i) Both the Transferor Companies and Transferee Company are under common control and it would be advantageous to combine the activities and operations in a single Company and to build strong capability to effectively meet future challenges in competitive business environment.

(ii) The proposed Amalgamation would result in business synergy, pooling of physical, financial and human resource of these Companies for the most beneficial utilization of these factors in the combined entity.

(iii) Presently, the Transferor Companies are engaged in the business of trading of ceramic tiles, sanitary ware and allied products and other related activities and Transferee Company is also engaged in the business of manufacturing and trading of ceramic tiles, polished vitrified tiles, glazed vitrified tiles, sanitaryware and bath fittings, tile laying solutions, other allied products and other related activities. The proposed amalgamation will enable the integration of the business activities of the Transferor Companies with the Transferee Company.

(iv) The proposed Scheme of Amalgamation will result in usual economies of a centralized and a large company including elimination of duplicate work, reduction in overheads, better and more productive utilization of financial, human and other resource and enhancement of overall business efficiency. The proposed Scheme will enable these Companies to combine their managerial and operating strength, to build a wider capital and financial base and to promote and secure overall growth.

(v) The amalgamation will result in significant reduction in multiplicity of legal and regulatory compliances which at present is required to be made separately by the Transferee Company as well as by the Transferor Companies.

(vi) The proposed amalgamation would enhance the Shareholders' value of the Transferor Companies and the Transferee Company.

(vii) The proposed Scheme of Amalgamation will have beneficial impact on the Transferor Companies and the Transferee Company, their Shareholders, employees and other stakeholders and all concerned.

In the view of the above advantages and benefits, the respective Board of Directors of the Transferor Companies and the Transferee Company have formulated this Scheme pursuant to the provisions of Sections 230-232 and other applicable provisions of the Companies Act, 2013. To give effect to the proposals contained herein, this Scheme of Amalgamation is presented for approval to the Hon'ble National Company Law Tribunal, Kolkata Bench.

Further, the respective Board of Directors of the Transferor Companies and the Transferee Company are of the opinion that the Scheme would be beneficial to and in the best interest of the Shareholders, creditors, employees and other stakeholders of the Transferor Companies and Transferee Company along with general public at large.














## D. PARTS OF THE SCHEME

This Scheme is divided into the following parts:

**PART A:** Definitions and Share Capital of Transferor Companies and Transferee Company;

**PART B:** Amalgamation of Transferor Companies with and into the Transferee Company and the consideration thereof;

**PART C:** Accounting Treatment in the books of Transferor Companies and Transferee Company for the Scheme; and

**PART D:** General Terms and Conditions applicable to all the Parts of the Scheme.

The Scheme, in no way, is a Scheme of compromise or arrangement with the creditors of any of the Companies and the Scheme is not affecting the rights of the creditors as all the creditors will be paid/satisfied in full, as and when their respective amounts fall due in the usual course of business, by the Transferee Company.

The Scheme is not a Scheme of Corporate Debt Restructuring as envisaged under Section 230(2)(c) of the Act.

## PART A

## DEFINITIONS AND SHARE CAPITAL OF TRANSFEROR COMPANIES AND TRANSFEREE COMPANY

### 1.1. DEFINITIONS

In this Scheme, unless repugnant to the context or meaning thereof, the following expressions shall have the following meanings:

a) **"Act" or "the Act"** means the Companies Act, 2013 and the rules, regulations, notifications made thereunder including any statutory modifications, re-enactments or amendments thereof from time to time and for the time being in force;

b) **"Amalgamated Undertaking(s)"** shall mean and include the whole of the businesses and undertakings of the Transferor Companies, as on the Appointed Date, being amalgamated with the Transferee Company and shall include (without limitation):

i. all the properties and assets, whether movable or immovable, whether freehold or leasehold, real or personal, in possession or reversion, corporeal or incorporeal, tangible or intangible, present or contingent, deposits, investments of all kinds (including shares, scrips, stocks or pass through certificates), all cash balances with the banks, money at call and short notice, loans, advances, land and building leasehold or freehold, all fixed and movable plant and machinery, computers and accessories, software and related data & licenses, leasehold improvements, capital work-in progress, vehicles, furniture, fixtures, fittings, office equipment, telephone, facsimile and other communication facilities and equipment, electricals, appliances, accessories, deferred tax assets, contingent rights or benefits, lease and hire purchase contracts and assets, financial assets, benefit of insurance claims, receivables, cheques and other negotiable instruments (including post-dated cheques), benefit of assets or properties or other interest held in trust, benefit of any security arrangements, authorities, allotments, approvals, buildings and structures, office, residential



SOMANY BATHWARE LIMITED
SOMANY EXCEL VITRIFIED PVT LTD
SR CONTINENTAL LIMITED
SOMANY CERAMICS LIMITED

and other premises, tenancies, leases, licenses (including all assignments and grants thereof), reserves, provisions, funds, security deposit refunds, sales or purchase order, powers, consents, authorities, registrations, agreements, contracts, engagements, all non-compete covenants, arrangements of all kinds, rights, titles, interests, benefits, leasehold rights, import quotas, registrations whether under Central, State or other laws, regulatory approvals, lower withholding certificates, tax credits (including MODVAT or CENVAT, Service Tax credits, input of Goods and Services Tax), incentives or subsidies or schemes of central or state or local governments, certifications and approvals, tax holiday benefits, tax incentives & exemptions (including but not limited to tax credits), Minimum Alternate Tax Credit entitlement ("MAT Credit") (whether recorded in the books or not), unabsorbed depreciation (to extent available under law), tax losses (to extent available under law), advance tax payments (including self-assessment tax & TDS) under the IT Act, easements, privileges, liberties, grants and advantages of whatsoever nature as may be available to the Transferor Companies or in relation to any movable or immovable assets of the Transferor Companies and including right to use and avail of telephones, telex, facsimile, e- mail, web-connections, leased line connections and installations, utilities, electricity and other services;

ii. investments in subsidiaries, joint ventures, associate companies, and other Persons in India or any jurisdiction outside India, subject to Applicable Law;

iii. any license fee/security deposits with any Appropriate Authority that may have been paid by the Transferor Companies;

iv. all records, files, papers, computer programs along with their licenses, manuals, data, back- up copies, catalogues, drawings, sales, and advertising materials, lists and other details of present and former customers and suppliers, customers credit information, pricing information and other records and data whether in physical or electronic form in connection with or relating to the Transferor Companies;

v. all intellectual property rights including all trademarks, trademark applications, trade names, patents and patent applications, domain names, logo, websites, internet registrations, designs, copyrights, copyrights and other industrial designs and intellectual properties and rights of any nature whatsoever including know-how assignments and grants in respect thereof, trade secrets and all other interests exclusively relating to the Transferor Companies;

vi. all applications made by the Transferor Companies for purpose of registration of any intellectual property;

vii. all employees of the Transferor Companies immediately preceding the approval or sanction of the Scheme by the Hon'ble NCLT;

viii. all the debts, liabilities, duties, and obligations present and future of the Transferor Companies including contingent liabilities, secured and unsecured payables, statutory liabilities (including but not limited to Service Tax, GST, income tax).

It is intended that the definition of Amalgamated Undertaking under this Clause would enable the transfer of all properties, assets, rights, duties, and liabilities of the Transferor Companies into the Transferee Company pursuant to this Scheme unless otherwise expressly provided in this Scheme.

c) **"Applicable Laws"** mean any applicable statute, law, regulation, ordinance, rule, judgment, rule of law, orders, decree, ruling, bye-laws, approvals of any Appropriate Authority, directive, guideline, policy, clearance, requirement or other governmental restriction or any similar form of decision of or determination by, or any interpretation or administration having the force of law of any of the foregoing by any Appropriate Authority, statutory authority, court, tribunal having jurisdiction over the matter in question, whether in effect as of the date of this Scheme or at any time thereafter;

SOMANY BATHWARE LIMITED

SOMANY EXCEL VITRIFIED PVT LTD



SR CONTINENTAL LIMITED

SOMANY CERAMICS LIMITED

d) **"Appointed Date"** means the April 01, 2025 or as the Hon'ble National Company Law Tribunal, Kolkata Bench may direct;

e) **"Appropriate Authority"** means:

i. the Central Government *(as defined hereinafter);*

ii. the government of any jurisdiction (including any national, state, municipal or local government or any political or administrative subdivision thereof) and any department, ministry, agency, instrumentality, court, Tribunal, central bank, commission, or other authority thereof;

iii. any governmental, quasi-governmental or private body or agency lawfully exercising, or entitled to exercise, any administrative, executive, judicial, legislative, regulatory, licensing, competition, tax, importing or other governmental or quasi- governmental authority including (without limitation) any Stock Exchanges, the Securities and Exchange Board of India, Reserve Bank of India, Ministry of Corporate Affairs, the Registrar of Companies, the NCLT (as defined hereinafter) and the Competition Commission of India.

The term Appropriate Authorities shall be construed accordingly.

f) **"Board of Directors" or "Board"** means board of directors of the respective Transferor Companies and/ or the Transferee Company, as the case may be, and include any committee (s) of the boards or any person(s) authorized by the board of directors of the respective companies for the purposes of matters pertaining to the Scheme and/or any other matter relating thereto;

g) **"Central Government"** for the present Scheme means and include but not limited to the concerned Regional Director of Ministry of Corporate Affairs, Eastern Region and the Official Liquidator, Kolkata as appointed by the Central Government or such other authorities to whom powers under Sections 230 to 232 or under other applicable provisions (relevant to this Scheme) of the Act may be delegated from

time to time;

h) **"Clause" and "Sub Clause"** means relevant clauses or sub clauses set out in the Scheme;

i) **"Companies"** shall collectively mean the Transferor Companies and the Transferee Company.

j) **"Effective Date"** means the last of the dates on which certified copies of the order of the NCLT (as defined hereinafter) sanctioning the Scheme are filed by the Companies with the jurisdictional Registrar of Companies. Any references in this Scheme to the "upon this Scheme becoming effective" or "upon coming into effect of this Scheme" or "upon the Scheme coming into effect" or "effectiveness of the Scheme" shall be construed to be a reference to the Effective Date.

k) **"IND AS"** means the Indian Accounting Standards prescribed under Section 133 of the Act, as notified under the Companies (Indian Accounting Standard) Rules, 2015;

l) **"IT Act"** means the Income-tax Act, 1961 and the rules made there under, as may be amended or re-enacted from time to time;

m) **"National Company Law Tribunal" or "NCLT" or "The Tribunal"** means the Hon'ble National Company Law Tribunal, Kolkata Bench having jurisdiction over the Transferring Companies and the Transferee Company or any other relevant bench of the Hon'ble National Company Law Tribunal constituted under Section 408 read with Section 419 of the Act having jurisdiction over the companies to sanction the Scheme, as and when the context may require;

n) **"Permits"** means all consents, licenses, permits, permissions, authorisations, rights, clarifications, approvals, clearances, confirmations, declarations, waivers, exemptions, registrations, or filings from any Appropriate Authority;

o) **"Proceedings"** include any suit, appeal or any legal proceeding of whatsoever nature, in any Court of law or tribunal or any judicial or quasi-judicial body or any



SOMANY BATHWARE LIMITED
SOMANY EXCEL VITRIFIED PVT LTD
SR CONTINENTAL LIMITED
SOMANY CERAMICS LIMITED

assessment proceeding before any authority under any law and also arbitration proceeding.

p) **"Registrar of Companies"** means the Registrar of Companies, Kolkata;

q) **"Scheme" or "Scheme of Amalgamation" or "this Scheme" or "the Scheme"** means and refers to this Scheme of Amalgamation involving amalgamation of the Transferor Companies into the Transferee Company, as set out herein in its present form or with any modification(s) made as per Clause 16 or directed by Shareholders/ creditors of the respective Transferor Companies and Transferee Company, subject to such modifications as may be deemed fit by the Hon'ble NCLT or by any other Appropriate Authority;

r) **"SEBI"** means the Securities and Exchange Board of India, constituted under the Securities and Exchange Board of India Act, 1992;

s) **"Shareholders"** with respect to the Transferor Companies and the Transferee Company, means respectively, the persons registered from time to time, as the holders of the equity shares of the Company concerned;

t) **"Status of Step-down Subsidiary SRCL Buildwell Private Limited ("SRCLBL"):** It is hereby clarified that SRCL Buildwell Private Limited, a Step-down Subsidiary ("SRCLBL"), which is currently a wholly-owned subsidiary of the Transferor Company 3 , shall not form part of this Scheme of Amalgamation and shall continue to exist as a separate legal entity.

Upon the Scheme becoming effective, the entire shareholding of **SRCLBL** held by the Transferor Company 3 shall, by operation of law, be vested in and held by the Transferee Company, and **SRCLBL** shall become a direct subsidiary of the Transferee Company.

The operations, assets, liabilities, contracts, and employees of **SRCLBL** shall remain unaffected by this Scheme."

u) **"Stock Exchanges"** means BSE and NSE;

v) **"Tax"** means **"Tax" or "Taxes"** and includes any tax, whether direct or indirect, including buy back tax, charges, customs duty, duties (including stamp duties), excise duty, fees, foreign tax credit, goods and service tax ("GST"), income tax (including withholding tax ("TDS"), levies, local body taxes, octroi, service tax, tax collected at source ("TCS"), value added tax ("VAT"), or other similar assessments by or payable to any Appropriate Authority, including in relation to (a) assets, capital gains, employment, entry, expenditure, foreign trade policy, gift, gross receipts, immovable property, imports, income, interest, licensing, movable property, municipal, payroll and franchise taxes, premium, profession, sales, services, transfer, use, wealth, withholding, and (b) any assessments, fines, interest, penalties or additions to tax resulting from, attributable to or incurred in connection with any proceedings or late payments in respect thereof.

The expressions which are used in this Scheme and not defined in this Scheme, shall, unless repugnant or contrary to the context or meaning hereof, have the same meaning as ascribed to them under the Act, IT Act, Indian Accounting Standard, as may be applicable and other Applicable Laws, rules, regulations, byelaws, as the case may be, or any statutory modification or re-enactment thereof from time to time. Wherever reference is made to the Hon'ble NCLT in the Scheme, the reference would include, if appropriate, reference to the concerned Bench of Hon'ble NCLT or such other forum or authority as may be vested with the powers of the Hon'ble NCLT under the Act.

## 1.2. DATE OF COMING INTO EFFECT

The various Parts of the Scheme as set out herein, in its present form or with any modification(s) and amendments (s) made under Clause 16 of the Scheme or as approved, imposed or directed by the Hon'ble NCLT, or any other Appropriate Authorities, as the case may be and applicable, shall come into effect from the Appointed Date, but shall be made operative from the Effective Date.

SOMANY BATHWARE LIMITED

SOMANY EXCEL VITRIFIED PVT LTD



SR CONTINENTAL LIMITED

SOMANY CERAMICS LIMITED

## 1.3. COMPLIANCE WITH TAX LAW

Apart from meeting the commercial and business interest of the Companies as specified hereinbefore, this Scheme, in so far as it relates to the Amalgamation, has been drawn-up to comply with the conditions relating to "Amalgamation" as specified under the IT Act, including Section 2(1B), Section 47, Section 2(42A), Section 49 and Section 72A and all other relevant provisions of the IT Act or any amendment or re-enactment thereto.

If any terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of the IT Act at a later date including resulting from an amendment of law or for any other reason whatsoever, the provisions of such law shall prevail, and the Scheme shall stand modified to the extent determined necessary to comply with the applicable provisions. Such modification will however not affect the other parts of the Scheme and the power to make any such amendments shall vest with the Board of Directors or any other Committee of the Board to which such power has been delegated by Transferor Companies and the Transferee Company.

## 1.4. UNLESS THE CONTEXT OTHERWISE REQUIRES

a) The singular shall include the plural and vice versa; and references to one gender include all genders.

b) Headings and bold typeface are only for convenience and shall be ignored for the purposes of interpretation.

c) References to an article, clause, section, part, or paragraph is, unless indicated to the contrary, reference to an article, clause, section, part or paragraph of this Scheme.

d) References to a person include any individual, firm, body corporate (whether incorporated), government, state or agency of a state or any joint venture, association, or partnership (whether or not having separate legal personality).

e) Reference to any law or to any provision thereof or to any rule or regulation promulgated thereunder includes a reference to such law, provision, rule, or regulation as it may, from time to time, be amended, supplemented, or re-enacted, or to any law, provision, rule, or regulation that replaces it.

f) Reference to a document includes amendment or supplement to, or replacement or novation of that document.

## 1.5. DATE OF APPROVAL OF SCHEME BY BOARD OF DIRECTORS AND SHARE CAPITAL

a) This Scheme was approved unanimously by the respective Boards of Directors of the Transferor Companies and the Transferee Company at their respective meetings held on November 07, 2025.

b) The authorized, issued, subscribed and paid-up share capital of the Transferor Companies and the Transferee Company as per the last audited financial statements as on March 31, 2025 is detailed herein below. There has been no change in the below capital structure of the Transferor Companies from the date of last audited financial statement till the date of approval of this Scheme by the Board of Directors. Subsequent to the approval of Nomination and Remuneration Committee in its meeting held on August 13, 2025, there has been change in the capital structure of the Transferee Company since March 31, 2025 pursuant to the exercise of employee stock options under its existing employee stock option scheme vide issue of 3,201 number of equity shares of Rs. 2/- each aggregating to Rs. 6,402/- from the date of last audited financial statement till the date of approval of this Scheme by the Board of Directors.

(i) **Somany Bathware Limited:**

The authorized, issued, subscribed and paid-up share capital of the Transferor Company 1 as on March 31, 2025 and as on the date of approval of this Scheme by the Board of Directors is as under:

| Particulars | Amount (Rs.) |
|---|---|
| **Authorized Share Capital** | |
| 10,00,000 Equity Shares of Rs.10/- each | Rs. 1,00,00,000/- |
| **Total** | **Rs. 1,00,00,000/-** |
| **Issued, Subscribed and Paid-up Share Capital** | |
| 5,00,000 Equity Shares of Rs. 10/- each | Rs. 50,00,000/- |
| **Total** | **Rs. 50,00,000/-** |

The entire issued, subscribed and paid-up equity share capital of the Transferor Company 1 is held by the Transferee Company, the holding Company of the Transferor Company 1, along with its 6 individual nominee Shareholders. There has been no change in the issued, subscribed, paid-up capital of the Transferor Company 1 from April 01, 2025 to till date.

(ii) **Somany Excel Vitrified Private Limited:**

The authorized, issued, subscribed and paid-up share capital of the Transferor Company 2 as on March 31, 2025 and as on the date of approval of this Scheme by the Board of Directors is as under:

| Particulars | Amount (Rs.) |
|---|---|
| **Authorized Share Capital** | |
| 80,00,000 Equity Shares of Rs.10/- each | Rs. 8,00,00,000/- |
| 20,00,000 Preference Shares of Rs.10/- each | Rs. 2,00,00,000/- |
| **Total** | **Rs. 10,00,00,000/-** |
| **Issued, Subscribed and Paid-up Share Capital** | |

SOMANY BATHWARE LIMITED

SOMANY EXCEL VITRIFIED PVT LTD



SRC CONTINENTAL LIMITED

SOMANY CERAMICS LIMITED

| | |
|---|---|
| 35,10,000 Equity Shares of Rs. 10/- each | Rs. 3,51,00,000/- |
| **Total** | **Rs. 3,51,00,000/-** |

The entire issued, subscribed and paid-up equity share capital of the Transferor Company 2 is held by the Transferee Company, the holding Company of the Transferor Company 3, along with its 6 individual nominee Shareholders. There has been no change in the issued, subscribed, paid-up capital of the Transferor Company 2 from April 01, 2025 to till date.

(iii) **SR Continental Limited:**

The authorized, issued, subscribed and paid-up share capital of the Transferor Company 3 as on March 31, 2025 and as on the date of approval of this Scheme by the Board of Directors is as under:

| **Particulars** | **Amount (Rs.)** |
|---|---|
| **Authorized Share Capital** | |
| 1,00,00,000 Equity Shares of Rs.10/- each | Rs. 10,00,00,000/- |
| **Total** | **Rs. 10,00,00,000/-** |
| **Issued, Subscribed and Paid-up Share Capital** | |
| 26,85,000 Equity Shares of Rs. 10/- each | Rs. 2,68,50,000/- |
| **Total** | **Rs. 2,68,50,000/-** |

The entire issued, subscribed and paid-up equity share capital of the Transferor Company 3 is held by the Transferee Company, the holding Company of the Transferor Company 3, along with its 6 individual nominee Shareholders. There has been no change in the issued, subscribed, paid-up capital of the Transferor Company 3 from April 01, 2025 to till date.

SOMANY BATHWARE LIMITED SOMANY EXCEL VITRIFIED PVT LTD



SR CONTINENTAL LIMITED SOMANY CERAMICS LIMITED

(iv) **Somany Ceramics Limited**

The authorized, issued, subscribed and paid-up share capital of the Transferee Company as on the date of approval of this Scheme by the Board of Directors is as under:

| Particulars | Amount (Rs.) |
|---|---|
| **Authorized Share Capital** | |
| 16,15,00,000 Equity Shares of Rs.2/- each | 32,30,00,000/- |
| **Total** | **32,30,00,000/-** |
| **Issued, Subscribed and Paid-up Share Capital** | |
| 4,10,12,806 Equity Shares of Rs 2/- each | 8,20,25,612/- |
| **Total** | **8,20,25,612/-** |

The equity shares of the Transferee Company are listed on BSE and NSE.

*Note- Issued, Subscribed and Paid-up Share Capital of SCL may change from time to time during the process of amalgamation due to further issue of securities. The Transferee Company has outstanding employee stock options under its existing employee stock option scheme, the exercise of which may result in an increase in the issued and paid-up share capital of the Transferee Company from time to time.*

## PART-B

## AMALGAMATION OF THE TRANSFEROR COMPANIES WITH AND INTO THE TRANSFEREE COMPANY AND THE CONSIDERATION THEREOF

### 2. TRANSFER AND VESTING OF ASSETS AND LIABILITIES OF THE TRANSFEROR COMPANIES INTO AND WITH THE TRANSFEREE COMPANY

2.1 Upon coming into effect of the Scheme and with effect from the Appointed Date and subject to the terms of the Scheme:

2.1.1 The Amalgamated Undertaking of the Transferor Companies as defined in Clause 1.1 shall, under the provisions of the Act and pursuant to the Order of the Hon'ble NCLT, without any further act, instrument, or deed, be and stand transferred to and vested in and be available to the Transferee Company as a going concern so as to become as and from the Appointed Date the estates, assets, rights, title, interests and authorities, etc. of the Transferee Company. It is clarified that mutation of title to the immovable properties of the Transferor Companies, in favor of the Transferee Company shall be required to be made accordingly by the Appropriate Authorities upon the Scheme becoming effective in accordance with the terms hereof.

2.1.2 All the debts, liabilities, duties, and obligations present and future of Transferor Companies (including contingent liabilities, if any) shall, without any further act, instruments or deed stand transferred to the Transferee Company pursuant to the provisions contained in Section 232 and other applicable provisions of the Act, so as to become the debts, liabilities, duties and obligations of the Transferee Company on the same terms and conditions as were applicable to the Transferor Companies with effect from the Appointed Date. It shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement (including any creditor or shareholder) relating to such debts, liabilities, contingent liabilities, duties and obligations in order to give effect to the provisions of this Clause.

SOMANY BATHWARE LIMITED

SOMANY EXCEL VITRIFIED PVT LTD



SR CONTINENTAL LIMITED

SOMANY CERAMICS LIMITED

2.1.3 All the profits or income accruing or arising to the Transferor Companies or expenditure or losses arising or incurred (including the effect of taxes, if any, thereon) by the Transferor Companies shall, for all purposes, be treated and be deemed to be and accrue as the profits or incomes or expenditure or losses or taxes of the Transferee Company, as the case may be. It is clarified for the purpose of brevity that all assets and receivables, whether contingent or otherwise, of the Transferor Companies as on the Appointed Date, whether provided for or not, in the books of account and all other assets or receivables which may accrue or arise on or after the Appointed Date shall be deemed to be the assets and receivables or otherwise, as the case may be of the Transferee Company.

2.1.4 All the inter-se contracts solely between the Transferor Companies and the Transferee Company shall stand cancelled and cease to operate, and appropriate effect shall be given to such cancellation and cessation in the books of accounts and records of the Transferee Company. For avoidance of doubt, it is hereby clarified that there will be no accrual of income or expense or interest or any other charges on account of any such inter-se transactions in the nature of sale or transfer of goods, material or services or deposits or balances between the Transferor Companies and the Transferee Company.

2.2 Subject to forgoing clauses of the Scheme as stated above, in respect of such of the assets of the Transferor Companies, including cash and bank balances, as are movable in nature or are otherwise capable of transfer by manual delivery or by paying over or by endorsement and or delivery, the same shall be so transferred by the Transferor Companies with effect from the Appointed Date, after the Scheme is sanctioned by the Hon'ble NCLT without requiring any deed or instruments of conveyance for the same and shall, upon such transfer, become the property, estate, assets, rights, title, interest and authorities of the Transferee Company.

2.3 The transfer and vesting of the properties, assets, liabilities, and undertakings of the Transferor Companies to and in Transferee Company under Clause 2.1 of this Scheme shall be subject to the mortgages and charges, if any, affecting the same, as and to the extent hereinafter provided.

SOMANY BATHWARE LIMITED

SOMANY EXCEL VITRIFIED PVT LTD



SR CONTINENTAL LIMITED

SOMANY CERAMICS LIMITED

2.3.1 All the existing securities, mortgages, charges, encumbrances or liens ('Encumbrances'), if any, as on the Appointed Date or created by the Transferor Companies after the Appointed Date, over the properties, assets, undertakings or any part thereof transferred to the Transferee Company by virtue of this Scheme and in so far as such Encumbrances secure or relate to liabilities of such Transferor Companies, the same shall, after Effective Date, continue to relate and attach to such assets or any part thereof to which they are related or attached prior to the Effective Date and as are transferred to Transferee Company, and such Encumbrances shall not be related or attach to any of the other assets of Transferee Company, provided however that no Encumbrances shall have been created by the Transferor Companies over its assets after the date of filing of the Scheme without the prior written consent of the Board of Directors of Transferee Company.

2.3.2 The existing Encumbrances over the assets and liabilities of Transferee Company or any part thereof which relate to the liabilities and obligations of Transferee Company prior to the Effective Date shall continue to relate only to such assets and properties and shall not extend or attach to any of the assets and properties of the Transferor Companies transferred to and vested in the Transferee Company by virtue of this Scheme.

2.3.3 Any reference in any security documents or arrangements (to which the Transferor Companies are a party) to any assets of the Transferor Companies shall be so construed to the end and intent that such security shall not extend, nor be deemed to extend, to any of the other asset(s) of the Transferee Company. Without prejudice to the foregoing provisions, the Transferor Companies and Transferee Company may execute any instruments or documents or do all the acts and deeds as may be considered appropriate, including the filing of necessary particulars and/or modification(s) of charge(s), with the Registrar of Companies to give formal effect to the above provisions, if required.

2.4 Subject to foregoing Clauses of the Scheme, all estates, assets, rights, title, control, enjoyment, benefits, interests and authorization accrued to and/ or acquired by the Transferor Companies after the Appointed Date and prior to the approval of the Scheme by the Hon'ble NCLT shall be deemed to have been accrued to and/ or acquired for and on behalf of the Transferee Company and shall, upon the coming into effect of this Scheme, pursuant to the provisions of the Act, without any further act, instrument or deed be and stand transferred to or vested in or be deemed to have been transferred to or vested in the Transferee Company to the extent and shall become the estates, assets, rights, title, interests and authorization of the Transferee Company which shall meet, discharge and satisfy the same.

2.5 Subject to the provisions of this Scheme, all the loans raised and utilized, all debts, duties, undertakings, obligations, and liabilities incurred or undertaken by the Transferor Companies after the Appointed Date and prior to the approval of the Scheme by the Hon'ble NCLT shall be deemed to have been raised, used, incurred or undertaken for and on behalf of the Transferee Company and to the extent they are outstanding on the Scheme coming into effect shall stand transferred or be deemed to be transferred, without any further act, instrument or deed to the Transferee Company so as to become as and from the Appointed Date, the debts, liabilities, duties and obligations of the Transferee Company which shall meet, discharge and satisfy the same.

2.6 Loans, advances, and other obligations (including any guarantees, letters of credit, letters of comfort or any other instrument or arrangement which may give rise to a contingent liability in whatever form), if any, due or which may at any time in future become due between the Transferor Companies and Transferee Company shall, ipso facto, stand discharged and come to an end and there shall be no liability in that behalf on any party and appropriate effect shall be given in the books of account and records of the Transferee Company. It is hereby clarified that there will be no accrual of interest or other charges in respect of any inter-company loans, advances and other obligations amongst the Transferor Companies and Transferee Company with effect from the Appointed Date.

2.7 The transfer and vesting of the Transferor Companies under above mentioned Clause(s) and the continuance of the proceedings by the Transferee Company shall not affect any transactions or proceedings, already concluded by the Transferor Companies in the ordinary course of business on and after the Appointed Date.

2.8 In respect of any other asset other than those referred to in sub-clause 2.1 of the Scheme above, the same shall without any further act, instrument, or deed, be transferred to and vest in and or be deemed to be transferred and vested in the Transferee Company on the Appointed Date pursuant to the provisions of the Sections 230-232 of the Act.

2.9 For avoidance of doubt and without prejudice to the generality of the applicable provisions of the Scheme, it is clarified that with effect from the Effective Date and till such time that the name of bank accounts of the Transferor Companies, have been replaced with that of the Transferee Company, the Transferee Company shall be entitled to operate the bank accounts of the Transferor Companies in the name of Transferor Companies in so far as may be necessary. All cheques and other negotiable instruments, payment orders received or presented for encashment, which are in the name of Transferor Companies, after the Effective Date shall be accepted by the bankers of the Transferee Company and credited to the account of the Transferee Company, if presented by the Transferee Company. The Transferee Company shall be allowed to maintain bank accounts in the name of Transferor Companies for such time as may be determined to be necessary by the Transferee Company for presentation and deposition of cheques and pay orders that have been issued in the name of Transferor Companies. To the extent such collection is made in the name of Transferor Companies, it shall also without any further act or deed be and stand transferred to the Transferee Company. It is hereby expressly clarified that any legal proceedings by or against Transferor Companies, in relation to the cheques and other negotiable instruments, payment orders received or presented for encashment, which are in the name of Transferor Companies shall be instituted, or as the case may be, continued by or against the Transferee Company after the coming into effect of this Scheme.

2.10 Upon sanction of the Scheme, the Transferee Company may at any time in accordance with the provisions hereof, if so required, under any law or otherwise, execute deeds of confirmation, in favour of the secured creditors, if any, of the Transferor Companies or in favour of any other party to any contract or arrangement to which of the Transferor Companies is a party or any writings as may be necessary to be executed in order to give formal effect to the above provisions. The Transferee Company shall under the provision of the Scheme be deemed to be authorized to execute any such writings on behalf of the

Transferor Companies and to implement or carry out all such formalities or compliance referred to above on the part of the Transferor Companies as is to be carried out or performed.

2.11 It is clarified that all assets and liabilities, whether contingent or otherwise, of the Transferor Companies as on the start of business on the Appointed Date, whether provided for or not, in the books of account and all other assets or liabilities which may accrue or arise on or after the Appointed Date shall be the assets and liabilities or otherwise, as the case may be of the Transferee Company and further that it shall not be necessary to obtain the consent of any third party or other person who is party to any contract or arrangement by virtue of which such assets, debts, liabilities, duties and obligations have arisen in order to give effect to the provisions of this clause.

2.12 In case any of the liabilities and obligations pertaining to the Transferor Companies as on the Appointed Date deemed to be transferred to the Transferee Company have been discharged by the Transferor Companies after the Appointed Date and prior to the sanction of the Scheme by the Hon'ble NCLT, such discharge shall be deemed to have been for and on account of the Transferee Company.

## 3. CONSIDERATION

The Transferor Companies are wholly owned subsidiary companies of the Transferee Company and Transferee Company along with its nominee shareholders holds all the shares issued by the Transferor Companies. On amalgamation of Transferor Companies with Transferee Company, no shares shall be issued or allotted in respect of the holding of the shares by the Transferee Company and its nominee shareholders in the Transferor Companies.

## 4. CANCELLATION OF SHARE CAPITAL OF TRANSFEROR COMPANIES

Upon the date of coming into effect of this Scheme, the share certificates, if any and/ or the shares in electronic form representing the shares held by the Transferee Company along with nominee shareholders in the Transferor Companies shall stand cancelled and extinguished without any further application, act, or deed for cancellation thereof by Transferee Company. Accordingly, all such shares of the Transferor Companies held by the Transferee Company along with its nominee shareholders and investment of the Transferee Company in such shares as appearing in the books of the Transferee Company shall stand cancelled upon the Scheme becoming effective without issue or allotment of any new shares in lieu of such shares of the Transferor Companies.

Upon the Scheme becoming effective, the entire shareholding of **SRCLBL** held by the Transferor Company 3 shall, by operation of law, be vested in and held by the Transferee Company, and **SRCLBL** shall become a direct subsidiary of the Transferee Company

## PART- C

## ACCOUNTING TREATMENT IN THE BOOKS OF TRANSFEROR COMPANIES AND TRANSFEREE COMPANY

### 5. ACCOUNTING TREATMENT

**Accounting treatment in the books of the Transferor Companies:**

Upon the Scheme coming into effect and pursuant to the provisions of the Act and receipt of relevant approvals, the Transferor Companies will dissolve without winding up and no specific accounting is prescribed in the Indian Accounting Standards specified under Section 133 of the Act for such transfer.

**Accounting treatment in the books of the Transferee Company:**

5.1 On effectiveness of the Scheme, since the transaction involves entities which are ultimately controlled by the same party before and after the transaction, the Transferee Company shall account for amalgamation in its books of account in accordance with Appendix C 'Business combinations of entities under common control' of the Indian Accounting Standard (Ind AS) 103 for Business Combination prescribed under Section 133 of the Act, as notified under the Companies (Indian Accounting Standard) Rules, 2015, relevant clarifications issued by The Institute of Chartered Accountants of India (ICAI) and / or Ministry of Corporate Affairs and generally accepted accounting principles, as may be amended from time to time, as under:

5.2 The Transferee Company shall record the assets and liabilities of the Transferor Companies vested in it pursuant to this Scheme, at their respective carrying values.

5.3 The balance of the retained earnings appearing in the financial statements of the Transferor Companies shall be aggregated with the corresponding balance appearing in the financial statements of the Transferee Company.

5.4 Upon coming into effect of the Scheme, the shares held by Transferee Company in the Transferor Companies shall be cancelled as specified in Clause 4 and investment in Transferor Companies as appearing in the books of Transferee Company shall get de-recognised.

5.5 The difference, if any, between carrying amount of the assets and liabilities and reserves of the Transferor Companies as recorded under Clause 5.2 and 5.3 above, and the investment in Transferor Companies as de-recognised under Clause 5.4 above, shall be transferred to Capital Reserve.

5.6 If there are any loans, advances, or other obligations (including but not limited to any guarantees, letter of credit, letter of comfort or any other instrument or arrangement which may give rise to a contingent liability in whatever form) that are due between the Transferor Companies and the Transferee Company, if any, shall, ipso facto, stand discharged and come to end and the same shall be eliminated by giving appropriate elimination effect in the books of account and records of the Transferee Company in the manner determined by the Board of Directors of the Transferee Company.

5.7 The financial information in the financial statements in respect of prior periods shall be restated as if the business combination had occurred from the beginning of the preceding period in the financial statements, irrespective of the actual date of the combination. However, if business combination had occurred after that date, the prior period information shall be restated only from that date.

5.8 It is, however, clarified that the board of directors of the Transferee Company, in consultation with the Statutory Auditors, may account for the present amalgamation and other connected matters in such manner as to comply with the provisions of section 133 of the Companies Act, 2013, the applicable Accounting Standard(s), generally accepted accounting principles and other applicable provisions, if any.

SOMANY BATHWARE LIMITED

SOMANY EXCEL VITRIFIED PVT LTD



SR CONTINENTAL LIMITED

SOMANY CERAMICS LIMITED

## PART- D

## GENERAL TERMS AND CONDITIONS APPLICABLE TO ALL THE PARTS OF THE SCHEME

### 6. TRANSACTIONS BETWEEN APPOINTED DATE AND UPTO EFFECTIVE DATE

With effect from Appointed Date and up to and including the Effective Date:

6.1 The Transferor Companies shall carry on and be deemed to have carried on its activities and shall be deemed to have held and stood possessed of and shall hold and stand possessed of its business, properties, assets, and undertakings for and on account of and in trust for the Transferee Company.

6.2 Any income or profit accruing or arising to the Transferor Companies and all costs, charges, expenses and losses or taxes (including deferred tax balances, if any) incurred by the Transferor Companies shall for all purposes be treated as the income, profits, costs, charges, expenses and losses or taxes (including deferred tax balances, if any), as the case may be, of the Transferee Company and shall be available to the Transferee Company for being disposed of in any manner as it thinks fit including declaration of dividend, issue of bonus shares by the Transferee Company. Any advance tax paid or TDS certificates received and self-assessment tax etc. paid by the Transferor Companies be treated and be deemed to be and accrue as taxes paid by the Transferee Company.

6.3 The Transferor Companies shall carry on its activities with reasonable diligence, prudence and shall not venture into or expand any new business, alienate, charge, mortgage, encumber or otherwise deal with the assets or any part thereof except in the ordinary course of business without the prior consent of the Transferee Company.

6.4 The Transferee Company and the Transferor Companies, unless expressly prohibited under this Scheme shall carry on its business in ordinary course and shall also be inter alia permitted to make a payment or distribution of dividend in any manner, alter its share

capital in any manner including any sub-division of shares, any conversion of convertible instruments, change in the constitutional documents including the registered office, objects or name of the company, any issue of shares or other securities, acquisition and/ or restructuring with the approval of its Board or shareholders, as the case may be.

## 7. TREATMENT OF TAX

7.1 The amalgamation of the Transferor Companies with the Transferee Company shall take place in accordance with the Scheme as per the provisions of Section 2(1B) and Section 72A of the IT Act.

7.2 With effect from the Appointed Date and upon the effectiveness of the Scheme, all taxes, duties, cess, receivables/ payables by the Transferor Companies including all or any refunds/ credits/ claims/ tax losses/ unabsorbed depreciation/MAT credit relating thereto available subject to the extent of the applicable laws shall be treated as the assets/ liability or refund/ credit/ claims/ tax losses/ unabsorbed depreciation, as the case may be, of the Transferee Company.

7.3 Upon the Scheme becoming effective, the Transferee Company is also expressly permitted to revise its income tax returns (including tax deducted at source ('TDS') certificates/ returns) and other direct and indirect tax returns filed under the relevant tax laws and to claim refunds, prepaid taxes i.e., TDS, self-assessment tax, advance tax and withholding tax credits, etc., relating to Transferor Companies pursuant to the provisions of this Scheme. Such returns may be revised and filed notwithstanding that the statutory period for such revision and filing may have expired.

7.4 Any refund, under the IT Act, Goods & Service Tax, Services Tax laws, Excise Duty laws, Central Sales Tax, applicable State Value Added Tax laws or other applicable laws/ regulations dealing with taxes/ duties/ levies due to the Transferor Companies consequent to the assessment made on it and for which no credit is taken in the accounts as on the date immediately preceding the Appointed Date shall also belong to and be received by the Transferee Company upon this Scheme becoming effective.










7.5 The tax payments (including, without limitation income tax, Goods & Service Tax, Service Tax, Excise Duty, Central Sales Tax, applicable State Value Added Tax, etc.) whether by way of tax deducted at source, advance tax, all earnest monies, security deposits provisional payments, payment under protest, or otherwise howsoever, by the Transferor Companies after the Appointed Date, shall be deemed to be paid by the Transferee Company and shall, in all proceedings, be dealt with accordingly. Further, any tax deducted at source by any party with respect to the Transferor Companies, if any (from Appointed Date to Effective Date) shall be deemed to be advance tax paid by the Transferee Company and shall, in all proceedings, be dealt with accordingly.

7.6 Obligation for deduction of tax at source on any payment made by or to be made by the Transferor Companies from the Appointed Date to the effective Date shall be made or deemed to have been made and duly complied with by the Transferee Company.

7.7 Upon the Scheme becoming effective, all un-availed credits and exemptions, benefit of lower withholding certificates, benefit of accumulated carried forward losses and unabsorbed depreciation, MAT credit (whether or not recorded in the books) and other statutory benefits, including in respect of income tax, Goods and Service Tax, Cenvat, Customs, VAT, Sales Tax, Service Tax etc. relating to any of the Transferor Companies, shall subject to the extent of the applicable laws, be available to and vest in the Transferee Company, without any further act or deed.

7.8 With effect from the Appointed Date and upon the effectiveness of the Scheme, accumulated loss and unabsorbed depreciation of Transferor Companies shall be set off or carried forward or allowed in the assessment of the Transferee Company on compliance with applicable provisions of Section 72A of the IT Act.

## 8. LEGAL PROCEEDINGS

8.1 All legal proceedings of whatsoever nature by or against the Transferor Companies pending and or arising at the Appointed Date and relating to any of its properties, assets, debts, rights, liabilities, duties and obligations referred above, shall be continued and or

enforced until the approval of the Scheme and as and from the approval of the Scheme shall be continued and enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued and enforced by or against such Transferor Companies. On and from the approval of the Scheme, the Transferee Company shall and may, if required, initiate any legal proceedings in its name in relation to the Transferor Companies in the same manner and to the same extent as would or might have been initiated by the Transferor Companies.

## 9. PERMITS

9.1 With effect from the Appointed Date, all the Permits (including the licenses granted by any governmental, statutory or regulatory bodies) held or availed of by, and all right and benefits that have accrued to, the Transferor Companies, pursuant to the provisions of Section 232 of the Act, shall without any further act, instrument or deed, be transferred to, and vest in, or be deemed to have been transferred to, and vested in, and be available to the Transferee Company so as to become as and from the Appointed Date, the Permits, estates, assets, rights, title, interests and authorities of the Transferee Company and shall remain valid, effective and enforceable on the same terms and conditions to the extent permissible in Applicable Laws. Upon the Effective Date and until the Permits are transferred, vested, recorded, effected, and/ or perfected, in the record of the Appropriate Authority, in favour of the Transferee Company, the Transferee Company is authorized to carry on business in the name and style of the Transferor Companies, and under the relevant license and/ or permit and/ or approval, as the case may be, and the Transferee Company shall keep a record and/ or account of such transactions.

## 10. CONTRACTS AND DEEDS

10.1 Subject to the other provisions of this Scheme, all contracts, deeds, bonds, agreements, licenses, insurance policies and other instruments, if any, of whatsoever nature, including without limitation for the purpose of carrying on the business, to which the Transferor Companies is party and subsisting or having effect on the date of sanction of the Scheme shall be in full force and effect against or in favour of the Transferee Company, as the case may be, and may be enforced by or against the Transferee Company as fully and

effectually as if, instead of the Transferor Companies, the Transferee Company had been a party thereto. Upon this Scheme becoming effective, the rights, benefits, privileges, duties, liabilities, obligations and interest whatsoever, arising from or pertaining to contracts, shall be deemed to have been entered into and stand assigned, vested and novated to the Transferee Company by operation of law and the Transferee Company shall be deemed to be the Transferor Companies' substituted party or beneficiary or obligor thereto, it being always understood that the Transferee Company shall be the successor in the interest of the Transferor Companies.

10.2 The Transferee Company shall be deemed to be authorized to execute any such deeds, writings, or confirmations on behalf of the Transferor Companies and to implement or carry out all formalities required on the part of the Transferor Companies to give effect to the provisions of this Scheme. It is clarified that any inter-se contracts between and amongst the Transferor Companies and the Transferee Company as on the sanction of the Scheme shall stand cancelled and cease to operate, and appropriate effect shall be given to such cancellation and cessation in the books of accounts and records of the Transferee Company.

10.3 All subsisting agreements or arrangements or licenses or permissions or registrations of the Transferor Companies relating to the use of patents, patent applications, trademarks (including logos), brands, designs, copyrights, domain names, payment gateways, websites, and or technology and all other intellectual property and rights, shall accrue to and for the benefit of the Transferee Company.

10.4 The Scheme shall not in any manner effect the rights of the creditors, if any, of the Transferor Companies, the Transferee Company, shall continue to enjoy and hold charge, if any, upon its securities.

## 11. SAVING OF CONCLUDED TRANSACTIONS

11.1 The transfer and vesting of the Transferor Companies with the Transferee Company and the continuance of all contracts or proceedings by or against the Transferor Companies shall not affect any contracts or proceedings already concluded by the Transferor

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Companies on or after the Appointed Date and the Transferee Company accepts and adopts all acts, deeds, matters and things done and or executed by such Transferor Companies in regard thereto as having been done or executed on behalf of the Transferee Company.

## 12. DISSOLUTION OF TRANSFEROR COMPANIES WITHOUT PROCESS OF WINDING UP

12.1 On the Scheme coming into effect, the Transferor Companies shall, without any further act or deed, stand dissolved without the process of winding up. The name of the Transferor Companies shall be struck off from the records of the concerned Registrar of Companies and Transferor Companies and/or Transferee Company shall make necessary filings in this regard.

12.2 Upon the Scheme coming into effect, all the existing shares or share certificates pertaining to the shares of the Transferor Companies shall stand cancelled and will become invalid and shall cease to be transferable. The Board of Directors of the Transferee Company will not be required to approach the shareholders of the Transferor Companies to surrender their share certificates after the Scheme becoming effective.

## 13. STAFF, WORKMEN AND EMPLOYEES

13.1 On the coming into effect of the Scheme, all staff, workmen and employees of the Transferor Companies, in service on such date, shall become the staff and employees of Transferee Company without any interruption or break in their service and on the basis of continuity of service and the terms and conditions of their employment with Transferee Company shall not be less favourable than those applicable to them with reference to Transferor Companies.

13.2 Upon the Scheme coming into effect, all staff welfare schemes and/or any accumulated balances including the existing provident fund, gratuity fund and or schemes and trusts, including employee's welfare trust, if any, created by the Transferor Companies for its employees shall be transferred to the Transferee Company. All obligations of Transferor

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Companies with regard to the said Fund or Funds as defined in the trust deed and rules shall be taken over by the Transferee Company from the Scheme coming into effect that all rights, duties, powers and obligations of Transferor Companies in relation to such Fund or Funds shall become those of Transferee Company and all the rights, duties and benefits of the employees employed in Transferor Companies under such Funds and Trusts shall be fully protected, subject to the provisions of law for the time being in force. It is clarified that the services of the staff, workmen and employees of Transferor Companies will be treated as having been continuous for the purpose of the said Fund or Funds.

13.3 Pending the transfer as aforesaid, the provident fund, gratuity fund and superannuation fund dues of the employees of the Transferor Companies would be continued to be deposited in the existing provident fund, gratuity fund and superannuation fund of the Transferor Companies.

13.4 Upon transfer of the aforesaid funds to the respective funds of the Transferee Company, the existing trusts created for such funds by the Transferor Companies shall stand dissolved and no further act or deed shall be required to this effect.

13.5 Without prejudice to the aforesaid, the Board of the Transferee Company, if it deems fit and subject to Applicable Laws, shall be entitled to retain separate trusts or funds within the Transferee Company for the erstwhile fund(s) of the Transferor Companies.

## 14. DIVIDENDS

14.1 The Transferor Companies and Transferee Company shall be entitled to declare and pay dividends, whether interim or final, to their respective shareholders in respect of the period prior to the Effective Date in the ordinary course.

14.2 It is clarified that the aforesaid provisions in respect of declaration of dividends are enabling provisions only and shall not be deemed to confer any right on any equity shareholder of Transferor Companies and Transferee Company to demand or claim any dividends which, subject to the provisions of the said Act, shall be entirely at the discretion of the Board of Directors of respective companies, subject to such approval of the shareholders, as may be required.



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## 15. APPLICATIONS TO THE HON'BLE NCLT

15.1 The Transferor Companies and the Transferee Company shall, file joint applications before the relevant Bench of the Hon'ble NCLT under whose jurisdiction, the registered offices of the Transferor Companies and the Transferee Company are situated for sanctioning of this Scheme under Sections 230-232 and other applicable provisions of the Act.

15.2 The Transferor Companies and the Transferee Company shall be entitled pending the sanction of this Scheme to apply to any Appropriate Authority, if required, under any Applicable Law for such consents and approvals which the Transferee Company may require to own the assets and/or liabilities of the Transferor Companies and to carry on the business of the Transferor Companies.

## 16. MODIFICATIONS OR AMENDMENTS TO THE SCHEME

16.1 The Transferor Companies and the Transferee Company, through their respective Board of Directors, may mutually decide to make and / or consent to any modifications or amendments to the Scheme or to any conditions or limitations that the Hon'ble NCLT or any other authority may deem fit to direct or impose or which may otherwise be considered necessary, desirable, or appropriate by the Board of Directors of the respective Companies. The Transferor Companies and the Transferee Company through their respective Board of Directors shall be authorized to take all such steps as may be necessary, desirable, or proper to resolve any doubts, difficulties, or questions whether by reason of any directive or order of any other authority or otherwise however arising out of or under or by virtue of the Scheme and or any matter concerned or connected therewith.

16.2 The Transferee Company even after the Scheme coming into effect may approach the Hon'ble NCLT or other concerned or competent authority(ies) for any incidental orders to remove any deficiency or overcome any difficulty in implementation of the Scheme or clear any ambiguity or to comply with any statutory requirement which necessitates the order of the Hon'ble NCLT or other concerned or competent authority(ies).

16.3 Any error, mistake, omission, commission which is apparent and or absurd in the Scheme should be read in a manner which is appropriate to the intent and purpose of the Scheme and in line with the preamble as mentioned hereinabove.

16.4 In the event, any of the conditions that may be imposed by the NCLT or Appropriate Authority which the Transferee Company and the Transferor Companies may find unacceptable for any reason, the Transferee Company and/or the relevant Transferor Companies will be at liberty to withdraw the Scheme or any particular Part of this Scheme.

## 17. CONDITIONALITY OF SCHEME

17.1 The Scheme is conditional upon and subject to:

17.1.1 The Scheme being filed with Stock Exchanges for the purpose of disclosures under Regulation 37(6) of Securities and Exchange Board of India (Listing Obligations and Disclosure Requirements) Regulations, 2015. Since the Scheme provides for amalgamation of Transferor Companies who are wholly owned subsidiaries with their holding/parent Company, the Transferee Company, no-objection from SEBI and the Stock Exchanges is not required to be obtained. Only the intimation and submission of the scheme of arrangement is required;

17.1.2 The approval of the amalgamation of the Transferor Companies with the Transferee Company by the requisite majorities in number and value of such classes of persons including the members and/ or creditors (wherever applicable) of such Transferor Companies and the Transferee Company, either at a meeting or through consent or no-objection letters or otherwise, as may be directed by the Hon'ble NCLT;

17.1.3 The Scheme being sanctioned by the Hon'ble NCLT under Sections 230-232 read with other applicable provisions of the Act;

17.1.4 Such other sanctions and approvals including sanctions of the Appropriate

Authority as may be required by law or contract in respect of any particular part of the Scheme being obtained; and

17.1.5 The last of the dates on which the certified copies of the order(s) of the NCLT referred to in this Scheme is filed with the Registrar of Companies by the Transferee Company and the Transferor Companies. The last of such dates shall be the "**Effective Date**" for the purpose of this Scheme.

## 18. EFFECT OF NON-APPROVALS

18.1 In the event of any of the said sanctions and approvals referred in Clause 17 of the Scheme is not obtained or complied with or satisfied, or, if for any other reason, this Scheme cannot be implemented, this Scheme shall automatically stand revoked, cancelled and be of no effect, save and except in respect of any act or deed done prior thereto as is contemplated hereunder, or as to any rights and liabilities which might have arisen or accrued pursuant thereto, and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law.

18.2 The Board of Directors of the Transferor Companies and Transferee Company shall be entitled to withdraw this Scheme by mutual consultation, prior to the Effective Date.

## 19. COMBINATION OF AUTHORIZED SHARE CAPITAL

19.1 Upon the Scheme coming into effect, the authorized share capital of the Transferee Company shall automatically stand increased by merging the authorized share capital of the Transferor Companies with the Transferee Company without any further act or deed on the part of the Transferee Company. On dissolution of Transferor Companies in accordance with Clause 12 of the Scheme, the stamp duty, or any other fees, if any, paid by the Transferor Companies on its authorized share capital shall be set-off against any fees payable by the Transferee Company on its combined authorized share capital subsequent to the amalgamation.

19.2 It is hereby clarified that upon the Scheme coming into effect, the provisions of Sections

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4, 5, 13, 14, 61, 62 and other applicable provisions, if any, of the Act read with Rules made thereunder in relation to increase in authorized share capital of the Transferee Company shall be deemed to have been complied with and the Transferee Company is not required to do any further acts, deeds, or things in this regard.

19.3 The Transferee Company shall make suitable alterations or amendments to the Memorandum & Articles of Association, if so required and necessary, for proper implementation of Scheme in compliance to the applicable provisions of the Act.

19.4 The capital clause of the Memorandum of Association of the Transferee Company shall, upon the coming into effect of this Scheme and without any further act or deed, be replaced by the following clause:

Memorandum of Association:

*"The Authorised Share Capital of the Company is Rs. 53,30,00,000 (Rupees Fifty Three Crore Thirty Lacs only) divided into 25,65,00,000 (Twenty Five Crore Sixty Five Lacs) Equity Shares of Rs. 2/- each and 20,00,000 (Twenty Lacs) Preference Shares of Rs 10/- each, with the rights, privileges and conditions attached thereto as per the relevant provisions contained in that behalf in these presents and with power to the Company to increase or reduce the capital and to divide the shares in the capital for the time being into several classes (being those specified in the Companies Act, 1956) and to attach thereto respectively such preferential, qualified or special rights, privileges or conditions as may be determined by or in accordance with the Articles of Association of the Company and to vary, modify, enlarge or abrogate any such rights, privileges or conditions in such manner as may be permitted by the said Act or provided by the Articles of Association of the Company."*

19.5 For the purpose of amendment in the Memorandum of Association and Articles of Association of the Transferee Company as provided in this Clause, the consent or approval given by the members of the Transferee Company to this Scheme pursuant to Sections 230 to 232 and any other applicable provision of the Act shall be deemed to be sufficient and no further resolution or approval of the member of the Transferee Company as required under the provisions of Section 13, Section 14 and Section 61 and



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any other applicable provisions of the Act shall be required to be passed for making such changes or amendment in the Memorandum of Association and Articles of Association of the Transferee Company.

## 20. ALTERATION OF MAIN OBJECTS CLAUSE OF MEMORANDUM OF ASSOCIATION OF TRANSFEREE COMPANY

20.1 Upon the Scheme coming into effect, the main object clause of Memorandum of Association of Transferee Company shall be deemed to be altered and amended, without any further act or deed, to include following new sub-clauses immediately after the paragraph (vii) of sub - clause (a) of clause 3 of the Memorandum of Association of Transferee Company:

*(viii) To manufacture, compose, prepare, import, export, buy, sell and generally deal in refractories, fire-bricks, fire-clay insulation bricks, silica bricks and bricks of all kinds, mortars, lime cement, fire cement and refractories of all kinds.*

*(ix) To make, compose, prepare, buy sell and dispose of sewer pipes, drain pipes, stone pipes, hume pipes, concrete pipes and pipes of all kinds and building materials of all kinds.*

*(x) To buy, sell, get, work, shape, hew, carve, polish, crush and prepare for market or use stone of all kinds and to manufacture, pave and deal in artificial stone weather for building, paving or other purposes.*

*(xi) To manufacture, prepare, import, export, buy, sell and generally deal in all kinds of glass, glass-wares; glass-goods, mirrors, looking glass, scientific glasswares, bangles, false pearls, bottles, phials and all kinds of articles prepared of glass and to carry out the business of glass leveller, patent solverer, glass embosser, ecclesiastical lead workers, glass tablet, show card and show case manufactures.*

*(xii) To produce, manufacture, refine, treat, cure, process, prepare, import, export, purchase, sell and generally deal in all kinds if ceramics, ceramic wares, insulators, asphalt, asbestos, terakota, blocks, lime stone, fibreglass, fibre glassware, mortals, jigs,*



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*tools, dies, fixtures and bathroom accessories and generally deal in or process any other products which may come out as by products or which may be essential for filing or fixing the above products or fittings for any of the products or by products or may in any way be similar to the products.*

*(xiii) To render to any person or firm or body corporate whether in India or elsewhere technical information, know-how, consultancy services, processes, engineering, manufacturing and operating data, plans, lay-outs, and blue-prints useful for design, erection and operation of plant related to the production, manufacturing, designing, fabricating, assembling, of refractories, glass and glasswares of all kinds, ceramic materials and tiles of all kinds.*

*(xiv) To enter into franchise operations, tie-ups, collaborations, technology transfers within India and outside India for the abovementioned clauses.*

*(xv) To act as consultant, retainers, contractors, decorators, planners, approvers, commission agents, mediators, brokers, factors, consultants, advisers or a alike for various organizations dealing in above mentioned clauses.*

20.2 The above shall be effected as an integral part of the Scheme and shall be deemed to be in due compliance of the applicable provision of the Act. The consent of the members of the Transferee Company to the Scheme pursuant to Section 232 of the Act and any other applicable provisions of the Act shall be deemed to be sufficient compliance under the Act and for the purposes of effecting this amendment and no further resolution(s) under Section 13 or other applicable provisions of the Act shall be required to be separately passed.

20.3 The filing of the certified copy of this Scheme as sanctioned by the Tribunal, in terms of Sections 230-232 of the Act and any other applicable provisions of the Act, together with the copy of order of the Tribunal and a copy of the Memorandum of Association with Registrar of Companies shall be deemed to be sufficient compliance with the applicable provisions of the Act.

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## 21. COSTS, CHARGES AND EXPENSES

21.1 All costs, charges, taxes including duties (including the stamp duty and or transfer charges, if any, applicable in relation to this Scheme), levies and all other expenses, if any (save as expressly otherwise agreed) of the Transferee Company and the Transferor Companies arising out of or incurred in carrying out and implementing this Scheme and matters incidental thereto shall be borne and paid by the Transferee Company.

## 22. SHAREHOLDERS' APPROVAL

22.1 It is hereby clarified that if pursuant to this Scheme any action is to be taken by the Transferor Companies or the Transferee Company, which requires the consent or approval of shareholders, then for such purposes, the consent or approval of the shareholders to the Scheme shall be deemed to be sufficient, and no further resolution of the shareholders would be required to be separately passed.

## 23. NO CAUSE OF ACTION

23.1 No third party claiming to have acted or changed its position in anticipation of this Scheme taking effect, shall get any cause of action against the Transferor Companies or the Transferee Company or their directors or officers, if the Scheme does not take effect or is withdrawn, amended or modified for any reason whatsoever.